

# THE TRANSFER OF PROPERTY ACT, 1882

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## CHAPTER V - OF LEASES OF IMMOVABLE PROPERTY

### Section 105. Lease Defined

A lease of immovable property is a transfer of a right to enjoy such property, made for a certain time, express or implied, or in perpetuity, in consideration of a price paid or promised, or of money, a share of crops, service or any other thing of value, to be rendered periodically or on specified occasions to the transferor by the transferee, who accepts the transfer on such terms.

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### Section 107. Leases How Made

A lease of immovable property from year to year, or for any term exceeding one year, or reserving a yearly rent, can be made only by a registered instrument. All other leases of immovable property may be made either by a registered instrument or by oral agreement accompanied by delivery of possession.

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### Section 108. Rights and Liabilities of Lessor and Lessee

In the absence of a contract or local usage to the contrary, the lessor is bound to disclose to the lessee any material defect in the property, and the lessee is bound to pay or tender, at the proper time and place, the premium or rent to the lessor or his agent in this behalf.